Harbor Point Mutual Auto Insurance

Bodily Injury Unit

Claim Notes

Claim number:	C-1297
Claimant:	Derrick Mccoy
Adjuster:	Alison Sweeney

07/05/2024
Claim opeend after the insured reported a sideswipe while changing lanes on a multi-lane road. The claimant's vehicle was reported as the other vehicle involved, and the claimant is represented by counsel, so all contact will go through the attorney's office.

07/10/2024
Reviewed the policy and confirmed the driver involved is named on it and that coverage was active on the date of loss. Nothing in the file suggests the damage predates the policy start.

07/11/2024
Photos from the insured's phone show damage along the passenger side of the vehicle, and the pattern is consistent with the impact described. No independent witnesses have come forward so far.

07/14/2024
Responding officer's report confirms the claimant was present in the other vehicle at the scene. Vehicle damage on the claimant's car matches the reported impact point, and no prior damage to that area is on record.

07/17/2024
Recorded a first statement from the claimant through counsel. The account describes the same sequence of events given at the scene, and the claimant reported neck and back strain that is a plausible result of a collision of this kind.

08/06/2024
Obtained the initial medical report. Treatment so far is limietd and in line with what is typically expected for a neck and back strain. No prior injury to the same body areas is known.

08/07/2024
Follow-up call with counsel to confirm the claimant's account has not changed. The description of the lane change and point of contact matches the earlier statement.

10/05/2024
Treatment frequency has increased to nearly every day, and the claimant has been seen at a rate many times the usual for this injury. Additional body areas have been added in treatment notes several weeks after the crash.

10/06/2024
Requested itemized treatment records and a provider summary to understand the increase in visits and the newly reported areas. Counsel has been informed the request is pending.

12/02/2024
Reviewed the records received so far. The escalation in care is documented, but the provider notes give the reason for each added area, and no earlier injury to those areas appears in the prior records obtained.

12/08/2024
Spoke again with the claimant thruogh counsel. The account of how the collision happened remains the same as in every prior conversation. Further medical review has been requested beofre any evaluation is made.

12/19/2024
File remains open pending the medical review and the remaining treatment records. Next step is to schedule the independent medical review and reassess the claim once that report is returned.

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Recorded Statement

Claim number:	C-1297
Statement of:	Derrick Mccoy
Taken by:	Alison Sweeney
Date:	06/26/2024

Q: This is the recorded statement regarding your automobile accident. Please state your full name for the record.

A: I'd rather just leave my name off this one, if that's okay. Can we keep going?

Q: That's fine. Can you tell me where the accident happened?

A: It was in Conroe, Texas, on the access road near the highway. I was changing lanes to get over for my exit.

Q: What happened as you moved over?

A: I checked my mirror and the lane looked clear. I signaled and started to move, and then a vehicle in that lane came up alongside me and we sideswiped each other. Scraped down the whole driver's side of my car.

Q: Did you stop after the contact?

A: Yes, I pulled onto the shoulder right away. The other driver stopped too, and we exchanged information.

Q: Were you injured?

A: My neck and lower back started hurting within a few hours. I felt stiff the next morning and it's been sore since. I went to a clinic and they diagnosed me with a neck and back strain.

Q: Are you still receiving treatment?

A: Yes, I'm doing physical therapy a few times a week and taking some medication for the pain. It's better than it was, but I still have bad days.

Q: Did you call the police or file a report?

A: An officer came out and took a report at the scene. I have the report number written down somewhere.

Q: Is there anything else you'd like to add?

A: Just that I was being careful and I'm hoping this gets sorted out soon, because I've missed work and I'm still paying for the car repairs.

Q: Thank you. That concludes the statement.

A: Thanks.